

Amendment No. 1 to SB1316

Jackson
Signature of Sponsor

AMEND Senate Bill No. 1316*

House Bill No. 1330

by deleting Section 7 and substituting:

SECTION 7. Tennessee Code Annotated, Section 8-44-108, is amended by deleting the section and substituting:

(a) As used in this section, unless the context otherwise requires:

(1) "Electronic means of communication" means real-time communication by video conference or audio conference and may include the use of an internet-based platform but does not include email;

(2) "Governing body" means the governing body of a board, agency, or commission of state government; and

(3) "Meeting" has the same definition as in § 8-44-102.

(b) A governing body may, but is not required to, allow participation by electronic means of communication for any meeting authorized by law for the benefit of the public or members of the governing body. A meeting of a governing body conducted with a member or members participating by electronic means of communication must comply with this section.

(c) If a meeting will be conducted with participation by a member or members of a governing body by electronic means of communication, then the governing body shall:

(1) Allow members of the public to:

(A) View and listen to the meeting by electronic means in real time if the meeting is conducted using video conference, or listen to the

meeting by electronic means in real time if the meeting is conducted using audio conference with no video;

(B) Participate by electronic means of communication, if participation would normally be allowed at the meeting; and

(C) Provide public comment by electronic means of communication, including providing written comment through the use of an internet-based platform, if public comment would normally be allowed at the meeting;

(2) Publish a notice and agenda as required by this part or other law that:

(A) States that the meeting will include members of the governing body participating by electronic means of communication;

(B) Specifies a physical location where members of the public may attend the meeting;

(C) Contains information necessary for members of the public to access the meeting by electronic means of communication to view or listen. Members of the public must not be required to register their names with the governing body as a condition for receiving such information; provided, however, that members of the public must provide their names if the members plan to provide a public comment; and

(D) Contains instructions on how to provide public comment as described in subdivision (c)(1)(B), which may include contacting the governing body or registering in advance to receive information enabling a person to provide public comment. This section does not require a governing body to alter its rules for public comment or public participation in a meeting;

(3) Make a recording of the meeting, and post the recording or a link to the recording on the governing body's website. The governing body shall post

the recording or link to the recording as soon as possible but no later than two (2) business days after the meeting. The governing body shall continue to publish on its website the recording or link to the recording for at least one (1) year, and shall retain the recording or link for at least three (3) years after the recording was created;

(4) Ensure that each part of a meeting required to be open to the public is audible to the public at the physical location specified in the notice of the meeting. Each member participating by electronic means of communication must be able to simultaneously hear each other and speak to each other during the meeting. A member participating by electronic means of communication shall identify the persons present in the room from which the member is participating;

(5) Prior to the meeting, provide to a member of a governing body participating by electronic means the same documents that will be discussed at the meeting with substantially the same content as those documents actually presented to members physically present;

(6) Take a roll call vote for all votes taken during a meeting held pursuant to this subsection (c); and

(7) Ensure that members of the governing body participating by electronic means are identifiable by name to the public throughout the duration of the meeting.

(d) A governing body shall meet with a quorum physically present no less than once per calendar year. If more than two (2) consecutive calendar years elapse without a governing body meeting with a quorum physically present, then the governing body shall report to the secretary of state that a physical quorum has not occurred in more than two (2) consecutive calendar years. The report must include the name of the governing body, the dates on which the governing body met with members participating by electronic means of communication, and the circumstances that prevented the

governing body from meeting with a quorum physically present during that time period.

The governing body shall also send a copy of the report to the chairs of the government operations committee of the senate and the committee of the house of representatives with jurisdiction over subject matters pertaining to government operations.

(e) This section does not prohibit a governing body from complying with § 8-44-109.

(f) Any meeting held pursuant to this section must comply with the requirements of the open meetings law, compiled in this part, and must not circumvent the spirit or requirements of that law.

(g) A member of a governing body participating in a meeting by electronic means of communication is considered physically present at the meeting for purposes of voting and for purposes of establishing a quorum. A member of a governing body participating in a meeting by electronic means of communication is not considered physically present for purposes of receiving compensation, whether denominated per diem or whatever name called, if the eligibility for compensation depends upon the member's physical presence at the meeting. However, a member may be reimbursed the expenses of such electronic communication or other means of participation.

(h) Notwithstanding this part to the contrary, § 4-5-312(c) controls electronic participation in contested case hearings pursuant to the Uniform Administrative Procedures Act, compiled in title 4, chapter 5, part 3; provided, however, that this section applies to meetings held to take summary action pursuant to § 4-5-320(c) and to review summary action pursuant to § 4-5-320(d)(2).

AND FURTHER AMEND by deleting Section 48 and substituting:

SECTION 48. Tennessee Code Annotated, Section 62-13-303(d), is amended by deleting the subsection and substituting:

(d) Each applicant who passes the examination shall submit an application for the appropriate license to the commission. If the application is not filed within one (1)

year of the date the applicant passed the examination, the applicant must retake and pass the examination in order to be eligible for a license. The commission may, at its discretion, waive this requirement.

AND FURTHER AMEND by deleting Section 65 and substituting:

SECTION 65.

(a) For the purpose of promulgating rules, this act takes effect upon becoming a law, the public welfare requiring it.

(b) SECTIONS 32 and 35 take effect on January 1, 2026, the public welfare requiring it.

(c) For all other purposes, SECTIONS 1-31, 33, 34, and 36-64 of this act take effect on July 1, 2025, the public welfare requiring it.